Ordinance 10: Revised Wimbishville Fair Work and Work–Life Balance Act

A Bill to reform labor standards within the Town of Wimbishville and to promote fair compensation and healthy work–life balance.

BE IT ENACTED BY THE TOWN COUNCIL OF WIMBISHVILLE HERE ASSEMBLED THAT:

SECTION 1. DEFINITIONS AND SCOPE

For the purposes of this Act, all provisions shall apply to employers operating within the jurisdiction of the Town of Wimbishville, except where preempted by higher law.

SECTION 2. HOURS AND OVERTIME

A. Non-exempt employees shall be eligible for overtime compensation if they work ***more than thirty-five (35) hours in a single workweek****.*

B. Overtime compensation shall be paid at a rate of ***two (2) times*** *the employee's regular hourly wage.*

SECTION 3. WAGES AND SALARY STANDARDS

A. The minimum wage for all employees within Wimbishville shall be ***$22.00 (twenty-two dollars) per hour****.*

B. Employers shall pay tipped employees the full minimum wage unless the employee ***routinely earns more than $2,000 (two thousand dollars) per month in tips****, as documented by payroll records.*

C. Any employee classified as exempt must be paid a minimum annual salary of ***$82,000 (eighty-two thousand dollars)****.*

SECTION 4. EMPLOYEE CLASSIFICATION

A. Executive, administrative, and professional employees shall ***no longer be automatically exempt*** *from local labor protections under this Act.*

B. All employees shall be presumed non-exempt unless the employer demonstrates otherwise in compliance with town labor standards.

SECTION 5. WORK–LIFE BALANCE PROTECTIONS

*A. Non-exempt employees may not be required to access or respond to work-related email, messaging, or digital communications unless they are **officially clocked in**.*

*B. Employees classified as exempt may not be required to use work-related email or communications on **Saturdays or Sundays**, except in cases of **bona fide emergencies**.*

*C. No employee may be scheduled for a **split shift**, defined as a workday containing an unpaid break of more than **one (1) hour**.*

SECTION 6. PAID TIME OFF

A. Employers shall not distinguish between "sick leave" and "vacation leave."

*B. Employers must instead provide **Paid Time Off (PTO)**, which employees may use for any lawful purpose.*

SECTION 7. ENFORCEMENT AND PENALTIES

A. The Wimbishville Department of Labor and Employment Standards shall oversee the enforcement of this Act.

*B. Any employer found in violation of this Act shall be subject to a civil fine of **$25,000 (twenty-five thousand dollars) per offense**.*

SECTION 8. SEVERABILITY

If any provision of this Act is found to be invalid, such invalidity shall not affect the remaining provisions, which shall remain in full force and effect.

SECTION 9. On The Subject of the Original Wimbishville Fair Work and Work Life Balance Act

The Original Wimbishville Fair Work and Work Life Balance Act will be considered as void. It will not be redacted or modified but will simply lose all enforcement powers as to its subjects.

SECTION 10. EFFECTIVE DATE

This Act shall take effect ***of passing of this bill***

All ordinances or regulations in conflict with this Act are hereby declared ***null and void*** *to the extent of such conflict*

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Aarush merla will automatically be appointed head of department of labor and employment standards (permanently) upon passage of this bill. As head he may audit any member of wimbishville, and failure to comply will result in automatic termination of all government positions in Wimbishville.

Aarush Merla shall have full and unilateral authority tImpose, modify, or waive any punishment at their sole discretion.Decide whether any action, behavior, or circumstance qualifies as a violation. This authority shall extend to all current and future social and economic legislation enacted within the Town of Wimbishville, regardless of subject matter.

This bill should not be redacted, or modified without unanimous approval(must have 100% of the club's support, not 99.9% only 100%) All future changes of this bill may not be instated with approval of Aarush Merla. Including new bills that attempt to change the effects of this resolution. This bill will be grandfathered in to the new regulations